



CHAPTER li.

An Act for incorporating the Littlestone-on-Sea and District
Water Company and empowering them to construct works
and supply water and for other purposes.

A.D. 1904.

[24th June 1904.]

WHEREAS Littlestone-on-Sea in the county of Kent has
for some years past derived its supply of water from the
private works and supply provided by Henry Thomas Tubbs who
owns the greater part of the property in Littlestone :

And whereas it is expedient in order to satisfy the growing
demands of the inhabitants that further and better provision be
made for affording an improved supply of water to Littlestone
and the adjoining parishes boroughs and rural districts in this
Act mentioned :

And whereas the said Henry Thomas Tubbs and the other
persons in that behalf in this Act named are willing on being
incorporated into a company with the necessary powers for such
purpose to undertake to provide an improved supply of water
to Littlestone and such other parishes boroughs and places and
it is expedient that they should be incorporated accordingly and
authorised to construct the waterworks as by this Act provided
and that such other powers as are in this Act contained should
be conferred on them for the better and more effectually carrying
the purposes of this Act into effect :

And whereas it is also expedient that the existing works
and private supply at Littlestone should be transferred to and
vested in the Company incorporated by this Act on the terms
herein-after mentioned :

And whereas plans and sections showing the lines situations
and levels of the works authorised by this Act and also a book

A.D. 1904. of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Kent and are herein-after respectively referred to as the deposited plans sections and book of reference :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. **1.** This Act may be cited as the Littlestone-on-Sea and District Water Act 1904.

Incorporation of Acts. **2.** The following Acts and parts of Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) The Companies Clauses Consolidation Act 1845 except the provisions relating to the conversion of borrowed money into capital Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts the Waterworks Clauses Acts 1847 and 1863.

Interpretation. **3.** In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the Company" means the Company incorporated by this Act;

The expressions "the waterworks" and "the undertaking" respectively mean and include the waterworks and the works connected therewith and the undertaking by this Act authorised.

Company incorporated. **4.** Henry Thomas Tubbs Edwin Finn Arthur Finn Robert William Perks and all other persons who have already subscribed

to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes herein-after mentioned and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Littlestone-on-Sea and District Water Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. A.D. 1904.

5. The limits of this Act for the supply of water (herein-after referred to as "the limits of this Act") shall be the parish and borough of New Romney the parish and borough of Lydd and the parishes of Saint Mary in the Marsh Hope All Saints and Dymchurch in the rural district of Romney Marsh all in the county of Kent. Limits of Act.

6. If at any time after the expiration of two years from the commencement of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the limits of supply the local authority of such district may provide a supply therein in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company as if in either case there were no company authorised by this Act to supply water therein. Power to local authority &c. to supply water in case Company fails to supply.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade.

7. The Company shall be established for the purpose of making and maintaining the waterworks and for supplying water within the limits of this Act and for carrying on the business usually carried on by water companies and generally for carrying the powers of this Act into execution. General purposes of Company.

8. The capital of the Company shall be thirty-six thousand pounds in three thousand six hundred shares of ten pounds each. Capital.

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Shares not
to be issued
until one-
fifth paid.

9. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof.

Calls.

10. One-fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three-fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Receipt in
case of per-
sons not sui
juris.

11. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
borrow.

12. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole twelve thousand pounds and of that sum they may borrow not exceeding three thousand pounds in respect of every nine thousand pounds of the said capital of thirty-six thousand pounds but no part of any such respective sums of three thousand pounds shall be borrowed until the Company shall have completed the service reservoir by this Act authorised nor until shares for so much of the said portion of capital in respect of which it is to be borrowed are issued and accepted and one-half of such portion of capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for such portion of capital have been issued and accepted and that one-half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares were issued bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and that such persons their executors administrators successors or assigns are legally liable for the same And upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

13. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall be not less than two thousand pounds in the whole.

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 For appoint-
 ment of a
 receiver.

14. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture
 stock.

15. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property for the time being of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking or works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Priority of
 mortgages
 and debenture
 stock
 over other
 debts.

16. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

Application
 of moneys.

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First ordinary meeting.

17. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of directors.

18. The number of directors may be five but the Company may from time to time reduce and again increase the number provided the number be not less than three nor more than five.

Qualification of directors.

19. The qualification of a director shall be the possession in his own right of not less than twenty shares.

Quorum.

20. The quorum of a meeting of directors shall be three.

First directors and election of directors.

21. Henry Thomas Tubbs Edwin Finn Arthur Finn Robert William Perks and one other person nominated by them or the majority of them shall be the first directors and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the places of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for reducing the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Auditors need not hold shares.

22. It shall not be necessary for the auditors appointed by the Company to hold shares in the capital of the Company.

Contracts not to disqualify for office of director.

23. Any contract to be made under this Act with any local authority or public body shall not disqualify any of the members of such local authority or public body for the office of director of the Company and no director or shareholder of the Company shall be disqualified for the office of director of the Company by reason of any contract between him and the Company for any loan of money to the Company but no director of the Company being a member of any such local authority or public body shall vote upon any question with reference to any contract with

such local authority or public body nor shall any director of the Company vote upon any question with reference to any contract between him and the Company for any loan of money to the Company. A.D. 1904.

24. Subject to the provisions of this Act the Company may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the waterworks herein-after described with all proper and necessary approaches fences excavations embankments sluices tanks culverts aqueducts dams weirs outfalls valves wells pumps drains filters and other conveniences and appliances connected with the said works or any of them or incidental thereto or necessary or convenient for inspecting maintaining cleansing repairing conducting or managing the same and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose. Power to
make water-
works.

The waterworks herein-before referred to and authorised by this Act will be wholly situated in the county of Kent and are as follows :—

Work No. 1—A well shaft or boring and pumping station with pumping engines engine and boiler houses and other works buildings and conveniencies connected therewith to be situated in the parish and borough of Lydd on a portion of Denge Beach on the north-east side of the South Eastern and Chatham line from Lydd to Dungeness and south-east of the curve on the branch line of the same company leading from Lydd to New Romney as shown on the $\frac{1}{2500}$ Ordnance map of the said parish (1898 edition) and between the said branch railway and the footpath or public road shown on the said Ordnance map leading from Boulderwall Farm to No. 2 Coastguard Station also shown on the said map which beach or site of the said well or boring and pumping station belongs or is reputed to belong to Henry Thomas Tubbs and is in the occupation of Edward Piper :

Work No. 2—A well shaft or boring and pumping station with pumping engines engine and boiler houses and other works buildings and conveniences in connexion therewith in the parish and borough of Lydd to be situated on a portion of the said Denge Beach east of the aforesaid

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branch railway of the South Eastern and Chatham Company to New Romney measured four hundred yards or thereabouts in a westerly direction from the line marked on the $\frac{1}{2500}$ Ordnance map of the said parish of Lydd (1898 edition) denoting the high-water mark ordinary spring tides and nine hundred yards or thereabouts measured in a south-westerly direction from the targets on the sand-hills shown on the said map which beach or site for the said well shaft or boring and pumping station belongs or is reputed to belong to the aforesaid Henry Thomas Tubbs and is in the occupation of the said Henry Thomas Tubbs :

Work No. 3--A service reservoir to be situated on the aforesaid Denge Beach in the said parish and borough of Lydd twenty yards or thereabouts east of the said branch railway of the South Eastern and Chatham Company to New Romney and seven hundred and fifty yards or thereabouts measured along the said branch railway in a southerly direction from the point where the Mockmill petty sewer shown on the said Ordnance map crosses under the said branch railway which said beach or site of the said reservoir belongs or is reputed to belong to the said Henry Thomas Tubbs and is occupied by Edward Piper :

Work No. 4—A conduit aqueduct or line of pipes wholly in the said parish and borough of Lydd commencing at the well and pumping station (No. 1) before described crossing the said Denge Beach in a southerly direction to and thence along the public footpath or road leading from the No. 2 Coastguard Station marked on the said Ordnance map to Boulderwall Farm and terminating in Dungeness Lane which leads to the said farm :

Work No. 5—A conduit aqueduct or line of pipes wholly in the said parish and borough of Lydd commencing at the well and pumping station (Work No. 1) before described crossing the said Denge Beach in a northerly direction and terminating at the said service reservoir (No. 3) before described on the said beach belonging or reputed to belong to the said Henry Thomas Tubbs and occupied by Edward Piper :

Work No. 6—A conduit aqueduct or line of pipes partly in the said parish and borough of Lydd and partly in the parish and borough of New Romney commencing at the service reservoir (No. 3) before described and continuing on the east side and parallel to the said New Romney Branch Railway of the South Eastern and Chatham Company to the public road called Littlestone Road as shown on the said Ordnance map and through land belonging or reputed to belong to the said Henry Thomas Tubbs and occupied by Edward Piper and Messrs. Bass and Goble and Henry Thomas Tubbs : A.D. 1904.

Work No. 7—A conduit aqueduct or line of pipes wholly in the said parish and borough of Lydd commencing at the well and pumping station (No. 2) before described and continuing across the said Denge Beach and Denge Marsh in a westerly direction and terminating by a junction with the said aqueduct or line of pipes (No. 6) before described through land belonging or reputed to belong to the said Henry Thomas Tubbs and occupied by the said Edward Piper.

25. Subject to the provisions of this Act the Company may alter improve enlarge extend renew or discontinue all or any of the said works and may by way of supplement to the water supply to be obtained by means of the works authorised by this Act collect take impound and use all or any of the springs streams and waters which can or may be collected or taken by means of the said pumping stations and reservoir. Power to take and use springs &c.

26. In the construction of the works authorised by this Act and subject to the provisions thereof the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and seven feet downwards but not so as to alter the surface level of any road or to raise any conduit or line of pipes above the surface of the ground except so far as may be shown on the deposited sections. Limits of deviation.

27. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

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Period for
completion
of works.

28. If the works authorised by this Act be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for executing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed but nothing in this section shall restrict the Company from extending altering or renewing their works mains and pipes from time to time whenever it shall be necessary for the purpose of increasing or distributing the supply of water within the limits of supply.

Power to
owners to
grant ease-
ments &c.

29. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants or to such easements rights or privileges as aforesaid.

Purchase of
lands by
agreement.

30. In addition to any other lands which the Company are under this Act authorised to take or purchase the Company may by agreement take purchase and hold for the purposes of this Act and for the general purposes of their undertaking any lands not exceeding in the whole ten acres in extent or any easement (not being an easement of water in which persons other than the grantors have an interest) in over or under any such lands and may also purchase by agreement and hold any lands which they may deem necessary for the purpose of preventing the fouling of the water of any stream flowing into any of their waterworks or for the protection of their waterworks against nuisances encroachment or injury and so long as any such lands shall be so held they shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts But the Company shall not upon any such lands create or permit any nuisance and no buildings shall be erected on such lands except such as are required for or are connected with the purposes of the Company's waterworks.

Power to
acquire ease-
ments &c. in
lieu of lands.

31.—(1) The Company may in lieu of acquiring any lands for the purpose of the conduits or other works by this Act

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authorised acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging the said works and of obtaining access thereto and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that as regards any lands taken or used by the Company for the purpose of such works where they are respectively laid underground the Company shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Company.

(3) Provided also that except as to land forming part of a street nothing herein contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

32. For the protection of the South Eastern Railway Company and the South Eastern and Chatham Railway Companies Managing Committee (herein-after respectively referred to as "the railway company") the following provisions shall (unless otherwise agreed) apply and have effect (that is to say):—

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes culverts or other works in the exercise of the powers contained in this Act upon across over under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts

For protec-
tion of South
Eastern
Railway
Company
and South
Eastern and
Chatham
Railway
Companies
Managing
Committee.

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stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by such engineer in writing :

- (B) All such works shall be done by and at the expense of the Company (except as in this section otherwise provided) who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the railway company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the railway company elect so to do where any mains or pipes are required to be laid under or across any level crossing of their railway they may themselves lay the same and the reasonable costs charges and expenses thereof shall be paid by the Company :
- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (D) If the Company lay down any mains or pipes in or under any embankment or over any bridge tunnel or viaduct of the railway company they shall provide and maintain such stop-cocks on either side of such embankment bridge tunnel or viaduct as in the opinion of the engineer of the railway company shall be necessary :
- (E) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the bursting leakage or failure of any such mains culverts pipes

or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station lands works or property of the railway company the Company shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided :

- (F) The Company shall acquire only such an easement across over or under any of the railways works or property of the railway company as may be necessary for constructing or maintaining any of the works of the Company and shall pay to the railway company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (G) If the railway company at any time or times hereafter of which they shall be the sole judges require to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the railway company may on giving to the Company fourteen days notice in writing under the hand of their secretary or general manager for the time being and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and in so doing shall cut off the supply of water for as short a time as possible and doing as little damage as may be without being liable under such circumstances to pay compensation in respect of such diversions supporting carrying or dealing with such works :

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(H) Except as in this section otherwise provided any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be agreed or failing agreement to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

For protection of Kent County Council.

33. Any alteration repair or improvement of any of the bridges or roads repairable by the county council of Kent or any alteration of or in the position of the same may be made as if this Act had not passed and if any such alteration repair or improvement necessitates any alteration either temporary or permanent in the level or position of any of the works by this Act authorised to be made or placed in over or through any of the bridges or roads aforesaid or necessitates any support either temporary or permanent to any such works the Company shall after fourteen days notice in writing by the county surveyor on behalf of the said county council forthwith make such alteration or afford such support at their own expense.

Company may lease &c. spare lands of undertaking and may reserve water rights &c. on sale.

34. The Company may demise and lease for any term not exceeding seven years in possession and also either before or after making any demise and lease thereof absolutely sell and dispose of to such persons and in such manner as the Company think fit any lands houses and property for the time being belonging to the Company which they do not require for the purposes of their undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable) And on the lease or sale by the Company of any such lands houses and property they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the lease or sale subject to such reservations accordingly and may also make any such lease or sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter as they think fit.

35. The Company shall provide a constant supply in accordance with the provisions of the Waterworks Clauses Act 1847 but shall not be required to supply water in any case at a pressure greater than that to be afforded by gravitation from the service reservoir or water tower shown upon the deposited plans and by this Act authorised.

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Constant
supply and
pressure.

36. The Company shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say) :—

Rates at
which water
to be sup-
plied for
domestic
purposes.

Where the rateable value of the premises so supplied with water does not exceed six pounds per annum the sum of twopence per week :

Where such rateable value exceeds six pounds and does not exceed thirty pounds at a rate per annum not exceeding seven pounds ten shillings per centum of such rateable value :

Where such rateable value exceeds thirty pounds and does not exceed fifty pounds at a rate per annum not exceeding seven pounds per centum of such rateable value :

Where such rateable value exceeds fifty pounds and does not exceed seventy pounds at a rate per annum not exceeding six pounds ten shillings per centum of such rateable value :

Where such rateable value exceeds seventy pounds and does not exceed one hundred pounds at a rate per annum not exceeding six pounds per centum of such rateable value :

And where such rateable value exceeds one hundred pounds at a rate per centum per annum not exceeding six pounds ten shillings per centum of such rateable value :

Provided as follows—

The Company shall not be compelled to furnish such supply for any less sum than eight shillings and eightpence in any one year but subject thereto nothing contained in this section shall enable the Company to

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charge more than half the above rates for empty and unoccupied houses from the time when the same shall have become empty and unoccupied and notice to that effect shall have been given to the Company until the same shall again be occupied :

Where the water rate is chargeable on the rateable value of a part only of any premises entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

For the purposes of this section the rateable value shall be the rateable value as ascertained by the valuation list in force at the commencement of the quarter for which the water rate accrues or if there is no such list in force by the last rate made for the relief of the poor.

In addition to the foregoing charges the Company may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of this Act a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Nothing in this section shall entitle the Company in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

Rate pay-
able by
owner for
small
houses.

37. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate

may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner
 Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1904.

38. Subject to the provisions of this Act the Company may supply water for other than domestic purposes and may charge for such supply one shilling per one thousand gallons and the moneys payable for such supply shall be recoverable either as an ordinary debt or as water rates are recoverable under the Waterworks Clauses Act 1847 and sections 68 to 74 of that Act shall have effect accordingly Provided that such supply for other than domestic purposes shall not at any time interfere with the supply for domestic purposes. Power to Company to supply water for other than domestic purposes.

39. The Company shall not be bound to supply water to any workhouse hospital or any large public institution except upon such terms as may be agreed between them and the guardians trustees managers or other persons having the charge of such workhouse hospital or institution or as in default of agreement may be from time to time determined by arbitration. Charges for supply to workhouses &c. to be agreed or settled by arbitration.

40. The Company may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Company to let for hire any water fittings to any person supplied by them with water. Power to sell or let meters &c.

41. The Company shall at all times at their own expense keep all meters let by them for hire to any person in proper order for correctly registering the supply of water and in default of their so doing such person shall not be liable to pay rent for the same during such time as such default continues. Company to keep meters in repair.

42. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Company Provided that if the Company and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined on the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before

Register of meter to be *primâ facie* evidence.

A.D. 1904. — them shall be paid and the decision of such court shall be final and binding on all parties.

Fraudulently
injuring
pipes meters
or fittings.

43. If any person wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or fitting belonging to the Company or fraudulently alters the index to any meter or fraudulently prevents any such meter or the index thereof from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company he shall (without prejudice to any other right or remedy for the protection of the Company) for every such offence be liable to a penalty not exceeding five pounds and the Company may in addition thereto recover the amount of any damages sustained by them And the existence of artificial means for causing such alteration or prevention when such pipe meter or fitting is under the custody or control of the consumer shall be *primâ facie* evidence that such alteration or prevention has been fraudulently caused by the consumer using such meter.

Repair of
meters by
consumer.

44. Every consumer of water of the Company shall at all times at his own expense keep all meters belonging to him whereby any water of the Company is registered in proper order for correctly registering such water in default whereof the Company may cease to supply water through such meters and the Company shall at all reasonable times have access to and be at liberty to take off remove test inspect and replace any meter belonging to a consumer such taking off removal testing and inspecting and replacing to be done at the expense of the Company if the meter be found in proper order but otherwise at the expense of the consumer.

Power to
Company
to supply
materials.

45. The Company may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Company in providing such materials and executing such work shall be paid by the person requiring the same.

Company
not bound
to supply
several
houses by
one pipe.

46. The Company shall not be bound to supply more than one house by means of the same service pipe but they may if they think fit require that a separate pipe from the main be laid into each house supplied by them with water.

47.—(1) The Company may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

A.D. 1904.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Company are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Company as the water rates in respect of the premises are recoverable.

48. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage or collecting area within which the reservoir and works by this Act authorised are situated with reference to the execution by the Company of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Company flowing to upon or from such lands directly or derivatively into such reservoir and works.

Power to agree with owners for securing purity of water.

49. Any notice to be served on a person supplied with water shall be sufficiently authenticated by the name of the secretary to the Company or if it be a notice to pay any charge in respect of a supply of water by the name of the collector of the Company being affixed thereto in writing and any such notice may be served on such person either personally or by sending the same

Form and service of notices by Company.

A.D. 1904. — through the post by a prepaid letter addressed to him by name at his last-known place of abode or of business or by delivering the same to some inmate of his last-known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall be sufficient to affix it or a copy thereof upon some conspicuous part of such premises.

Notice of
discontinu-
ance.

50. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to
purchase
existing
waterworks
at Little-
stone.

51.—(1) The Company shall if and when required by the owner purchase from Henry Thomas Tubbs his executors administrators or assigns and the said Henry Thomas Tubbs may sell and transfer to the Company the existing waterworks mains pipes lands waters sources of water agreements rights and privileges plant stores works and conveniences situated at Littlestone-on-Sea in the county of Kent upon such terms and conditions (pecuniary or otherwise) as may be settled by an arbitrator to be appointed by the President for the time being of the Institution of Civil Engineers.

(2) Immediately on the payment or satisfaction by the Company of the price or consideration the undertaking so conveyed shall become absolutely vested in the Company for all such or the like estate and interest as the said Henry Thomas Tubbs was seized or possessed of or entitled to at the date of such purchase.

For pro-
tection of
Henry
Thomas
Tubbs.

52. The following provisions for the protection of Henry Thomas Tubbs or other the owner for the time being of the Littlestone Estate and Greatstone Estate and other lands situate in the respective boroughs of New Romney and Lydd (in this section called "the owner" which expression shall include the owner's successors in right or title and his and their respective lessees) shall unless otherwise agreed between the Company and the owner have effect (that is to say):—

(1) The Company shall only acquire such an easement across or under any lands or property belonging to the owner as may be necessary for constructing and maintaining the conduits aqueducts or lines of pipes No. 5 No. 6 and No. 7 by this Act authorised The

amount to be paid for the acquisition of such easement shall be ascertained in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement : A.D. 1904.

- (2) Notwithstanding anything in this Act contained the Company where passing through any lands or property of the owner shall not deviate laterally from the centre line as shown on the deposited plans nor vertically from the levels as shown upon the deposited sections except with the consent in writing of the owner :
- (3) If at any time after the construction of the works by this Act authorised the Company should require for the purpose of executing any repairs and other works to enter upon any lands or property of the owner the Company shall except in cases of emergency give at least seven days notice to the owner of their intention and such works shall be executed with all reasonable despatch :
- (4) The Company shall not erect nor permit the erection of any houses huts or offices for their workmen or those of their contractors or other building on any part of the lands and property of the owner without having first obtained the written permission of the owner and then only upon such site or sites as may be directed by him or his agent :
- (5) It shall be lawful for the owner to form lay out and make along over or under the conduits aqueducts or lines of pipes any roads sewers drains or pipes but proper precautions shall be taken by the owner to prevent injury to the works and apparatus of the Company :
- (6) If any difference shall arise with respect to any matter under this section between the Company and the owner the matter in difference shall be referred to and settled by an engineer to be agreed upon between the Company and the owner or failing agreement by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers.

A.D. 1904.

Contracts
for supply-
ing water
for public
purposes.

53. The Company may enter into and carry into effect agreements with any urban or rural district council of any district adjoining or near to the limits of supply or any company authorised to supply water under parliamentary authority within any such district for the supply by the Company to any such district council or company of water in bulk and the agreements respectively may be for such periods not exceeding seven years and for such remuneration and on such terms and conditions whatsoever as the contracting parties think fit. Provided that it shall not be lawful for the Company to supply water under any such agreement beyond the limits of this Act or for other than domestic purposes within those limits if and so long as such supply shall interfere with the continuing supply of water for domestic purposes within the limits of this Act. Provided also that the Company shall not supply water within the statutory limits of supply of any company authorised to supply water under parliamentary authority without the consent of such company.

Liability to
water rent
not to dis-
qualify
justices &c.

54. No justice or judge of any court shall be disqualified from acting in the execution of this Act by reason of his being liable to the payment of any water rent meter rent rate or charge under this Act.

Contents of
summons &c.

55. Any summons or warrant issued for any of the purposes of this Act may contain in the body thereof or in a schedule thereto several sums.

Penalties
not cumula-
tive.

56. Penalties imposed under this Act and the Acts wholly or in part incorporated herewith for one and the same offence shall not be cumulative.

Costs of Act.

57. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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